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CASE #	CASE NAME	HEARING NAME
CVRI2602212	GONZALEZ VS YODITES & ASSOCIATES MANAGEMENT, LLC	DEMURRER

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Tentative Ruling:

Moving party: Defendants Yodites & Associates Management, LLC, Dana Garcia, Matthew Bauer and Katie Ryker

Represented by: Best Best & Krieger LLP

Responding party: Plaintiff Leticia Gonzalez

Represented by: Employee Justice Legal Group, P.C.

Plaintiff Leticia Gonzalez, a Mexican woman who speaks primarily Spanish, was hired in June 2018 as caregiver staff at Defendant Yodites & Associates Management, LLC's Basic Occupational Training Center ("BOT") in San Jacinto. BOT is a facility which provides daycare services and occupational training for adults with special needs. Defendants Dana Garcia ("Garcia") (program director), Matthew Bauer ("Bauer") (Chief Operating Officer); and Katie Ryker ("Ryker") (HR manager) are alleged to be "owners, directors, officers and/or managing agents" of BOT. Plaintiff was diagnosed with lupus in 2019 and provided Defendants with a doctor's note informing it of said disability, and they failed to engage in the interactive process with Plaintiff and failing to consider disability. She alleges due to her national origin, race and/or ethnicity, and related inability to speak English, Defendant and its management would often assign Plaintiff work or tasks that were less desirable or that other employees preferred not to do. Plaintiff alleges she was intentionally discriminated and/or retaliated against on the basis of her disabilities and/or race, her requests for reasonable accommodations and/or her complaints of being discriminated against when she was unfairly disciplined and falsely accused of wrongdoing. In November 2025, Plaintiff began seeing a mental health therapist who diagnosed her with anxiety. She was terminated on December 12, 2025.

On April 10, 2026, Plaintiff filed her complaint alleging the following causes of action: (1) Discrimination Based on Race, Ethnicity and/or National Origin; (2) Disability Discrimination (3) Failure to Reasonably Accommodate (4) Failure to Engage in a Prompt, Good Faith Interactive process (5) Retaliation in Violation of FEHA; (6) Failure to Take All Reasonable Steps to Prevent and/or Remedy Discrimination and/or Retaliation; (7) Retaliation and/or Wrongful Termination in Violation of Labor Code § 1102.5; (8) Wrongful Termination in Violation of Public Policy; (9) Defamation; (10) Violation of Labor Code §§

201 – 203 (11) Violation of Labor Code § 204; (12) Violation of Labor Code § 226; and (13) Violation of Labor Code §§ 226.7 & 512.

Defendants BOT, Garcia, Bauer, and Ryker (“Defendants”) now demur to the 7th (retaliation); 9th (defamation); 10th (Violation of Labor Code sections 201-203); 11th (Violation of Labor Code section 204); 12th (Violation of Labor Code section 226) and 13th (Violation of Labor Code sections 226.7) causes of action. (C.C.P., § 430.10(e).) Defendants contend that the 7th Cause of Action fails to allege protected whistleblower activity because paragraph 104 cites nonexistent statutes and many complaints concern personnel disputes, accommodation requests, and discrimination which do not constitute protected disclosures. Defendants also contend Plaintiff groups all defendants together without stating which defendant engaged in which retaliatory conduct in response to which protected disclosure. As to the 9th Cause of Action, Defendants argue the Complaint does not plead the actual defamatory statements with requisite specificity but instead merely summarizes categories of alleged accusations. As to the 10th through 13th Causes of Action, Defendants argue the Complaint identifies Garcia and Ryker but alleges only supervisory functions insufficient to establish employer-level authority under Lab. Code, § 558.1.

Defendants also move to strike (1) managing-agent allegations in ¶¶ 131, 138, 143, and 149; (2) punitive-damages allegations; (3) portions of Prayer No. 7 (§§ 558.1, 1194.2, 1194.5); (4) Prayer No. 8 (declaratory/injunctive relief); and (5) Prayer No. 11 (expert witness fees). (C.C.P., §§ 435-436.)

In opposition, Plaintiff argues the facts alleged in her complaint must be accepted as true on demurrer and as such the allegations are sufficient. Plaintiff argues Defendants cherry-pick by focusing solely on paragraph 104 when the Complaint alleges facts throughout identifying numerous disclosures with dates and legal violations, for example paragraph 36, alleging November 20, 2025 complaints to Ryker and Garcia about disability discrimination, race and national origin discrimination under FEHA and Government Code provisions. On defamation, Plaintiff argues the cases cited by Defendants impose evidentiary burdens inappropriate at the pleading stage. As to individual liability, Plaintiff argues the Complaint repeatedly alleges Garcia and Ryker were managing agents directly responsible for enforcing Labor Code compliance. Plaintiff requests leave to amend in the event the Court finds any allegations deficient.

On the motion to strike, Plaintiff argues punitive-damages facts are pled across 14 pages, § 998(d) preserves expert fees regardless of underlying causes, and terminated FEHA plaintiffs may still obtain declaratory/injunctive relief.

Defendants’ replies reargue the points presented in the moving papers.

Analysis

I. Meet and Confer

Code of Civil Procedure sections 430.41 and 435.5 requires a meet and confer process via phone, videoconferencing or in person before filing a demurrer or motion to strike. The meet and confer process requires the moving party to identify the causes of

action or allegations subject to attack and the plaintiff must provide legal support for its position. (*Id.* at §§ 430.41(a)(1), 435.5(a)(1).) The demurring party must file a declaration stating the means by which the parties met and conferred, or the responding party failed to respond or meet and confer in good faith. (*Id.* at §§ 430.41(a)(3), 435.5(a)(3).) Here, defense counsel declares he sent a letter regarding the deficiencies in the complaint and conferred with Plaintiff's counsel via Zoom and they were unable to resolve the issues presented. (Snarr Decl., ¶¶ 2-4, Exhs. A & B.) This is sufficient.

II. Demurrer

A. Standard

A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (C.C.P., § 430.10(e).) On demurrer, the court accepts properly pleaded material facts as true but not legal conclusions. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true, but the reviewing court does not assume the truth of conclusions of law. (*Aubry v. Tri-City Hospital District* (1992) 2 Cal.4th 962, 967.) It is error to sustain a demurrer if the complaint states a cause of action on any legal theory, even one not specifically pleaded or articulated by the plaintiff. (*Id.* at p. 967.)

B. Merits

7th Cause of Action – Retaliation and/or Wrongful Termination in Violation of Labor Code § 1102.5

A claim for violation of Labor Code section 1102.5 first requires that “the plaintiff establish a prima facie case of retaliation.” (*Manavian v. Department of Justice* (2018) 28 Cal.App.5th 1127, 1141.) To establish a prima facie case of retaliation, a plaintiff must show he (1) engaged in a protected activity, (2) was subjected to adverse employment action by his employer, and (3) that there was a causal link between the disclosure and the adverse action. (*Ibid.*) “An employee engages in activity protected by the statute when the employee discloses ‘reasonably based suspicions’ of illegal activity.” (*Ross v. County of Riverside* (2019) 36 Cal.App.5th 580, 592 [citation omitted].) Labor Code section 1102.5 “imposes a requirement of objective reasonableness and excludes from whistleblower protection disclosures that involve only disagreements over discretionary decisions, policy choices, interpersonal dynamics, or other nonactionable issues.” (*People ex rel. Garcia-Brower v. Kolla’s, Inc.* (2023) 14 Cal.5th 719, 734.) Labor Code section 1102.5 “requires only that an employee disclose information and that the employee reasonably believe the information discloses unlawful activity,” and there is no further requirement that the plaintiff make an express statement that the information amounts to a violation or noncompliance with a specific state or federal law at the time of disclosure. (*Id.* at 592-93.)

Here, Defendants contend that this claim fails to allege protected whistleblower activity because paragraph 104 cites nonexistent statutes and refers generally to entire regulatory titles without identifying specific provisions. While paragraph 104’s reference to nonexistent statute (Health and Safety Code § 1198.7), and undifferentiated regulatory titles (“Title 17 and 22”), the Complaint read as a whole identifies specific protected

disclosures grounded in existing law. and Labor Code § 1994, constitutes pleading defects, the Complaint is not limited to paragraph 104. Read as a whole, the Complaint identifies specific protected disclosures grounded in existing law.

Paragraph 36 alleges that on November 20, 2025, Plaintiff complained to Ryker and Garcia about disability discrimination, race and national origin discrimination, and that such mistreatment was causing severe emotional distress and having an adverse effect on her lupus. (Comp. ¶ 36.) Paragraph 32 alleges that on November 6, 2025, Plaintiff emailed a written complaint of discrimination and retaliation to Ryker. (*Id.* ¶ 32.) Paragraph 34 alleges that on November 18, 2025, Plaintiff sent another written complaint of discrimination and retaliation to Ryker. (*Id.* ¶ 34.)

These factual allegations adequately identify disclosures concerning violations of Government Code §§ 12940 and 12945.2 (FEHA prohibitions on disability and national-origin discrimination) and Labor Code § 98.6 (prohibition on retaliation for complaints about Labor Code violations), all of which are existing legal authorities and also pled in paragraph 104. Taking Plaintiff's factual allegations as true, Plaintiff has pleaded sufficient facts to state a cause of action. The Complaint must be read reasonably, liberally, and in context. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

Defendants next argue that many complaints concern personnel disputes, accommodation requests, and discrimination directed at Plaintiff herself, which do not constitute protected disclosures. Defendants cite to no authority to support this proposition.

Defendants also contend Plaintiff groups all defendants together without stating which defendant engaged in which retaliatory conduct in response to which protected disclosure. As to causal connection, the Complaint alleges that after Plaintiff's complaints, Defendant and Garcia began assigning difficult clients to her with even more frequency (Comp. ¶ 23), Defendant and Ryker threatened to report her to licensing (Comp. ¶ 39), and Defendant terminated her on December 12, 2025 (Comp. ¶ 43). These temporal and substantive connections suffice at the pleading stage. **The Court overrules the demurrer.**

9th Cause of Action – Defamation

The elements of a claim for defamation are: (i) a publication that is (ii) false; (iii) defamatory; (iv) unprivileged; and (v) has a natural tendency to injure, or which causes special damages. (*Taus v. Loftus* (2007) 40 Cal.4th 683, 720.) Statements that charge criminal conduct, tend to injure a person in their trade or business, and/or impute to one impotence or a want of chastity are defamatory per se and require no proof of actual damages. (Civ. Code, § 46; *The Nethercutt Collection v. Regalia* (2009) 172 Cal.App.4th 361, 367.) "The general rule is that the words constituting an alleged libel must be specifically identified, if not pleaded verbatim, in the complaint." (*Kahn v. Bower* (1991) 232 Cal.App.3d 1599, 1612, fn. 5 [citing others].)

Defendants argue the Complaint does not plead the actual defamatory statements with requisite specificity but instead merely summarizes categories of alleged accusations. However, Plaintiff has adequately alleged oral slander by pleading: Garcia's

April 10, 2025 false accusation that Plaintiff left clients unattended for four minutes while eating (Comp., ¶ 24); Garcia's May 6, 2025 false neglect/abuse accusation (Comp., ¶ 25); Garcia's October 30, 2025 furniture-moving accusation (Comp., ¶ 27); Garcia and Ryker's October 31, 2026 making false accusations; Ryker's false accusation of taking an unauthorized recording (Comp., ¶ 37); Garcia and Bauer's December 12, 2025 false accusations at termination (Comp. ¶ 43). She alleged publication to third parties via co-workers, other managers, manager-to-manager. (*Id.* ¶¶ 24, 28.)

Any deficiency in the written-libel sub-theory reaches only a portion of the claim and is properly addressed by motion to strike, not demurrer. (*PH II, INC. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1682.)

Defendants also argue the common interest privilege at Civil Code § 47(c) bars the action. Civil Code section 47 provides that a publication is privileged if made in the proper discharge of an official duty or in a communication without malice to a person interested therein by one who is also interested, by one who stands in such relation to the person interested as to afford a reasonable ground for supposing the motive for the communication to be innocent, or who is requested by the person interested to give the information. (Civ. Code, § 47(a), (c).) As to whether the alleged publication is privileged as a communication made without malice under subdivision (c), the question of whether Defendants acted with malice is a question of fact not suitable for determination on a demurrer. Plaintiff has sufficiently alleged malice through repeated allegations of knowledge of falsity which are sufficient to overcome Civ. Code § 47(c) at the pleading stage. (Comp. ¶¶ 24, 25, 44.)

Accordingly, the Court overrules the demurrer.

10th Cause of Action – Violation of Labor Code §§ 201 – 203; 11th Cause of Action – Violation of Labor Code § 204; 12th Cause of Action – Violation of Labor Code § 226; and 13th Cause of Action – Violation of Labor Code §§ 226.7 & 512

As to the 10th through 13th Causes of Action, Defendants argue the Complaint identifies Garcia and Ryker but alleges only supervisory functions insufficient to establish employer-level authority under Lab. Code, § 558.1. Under Section 558.1 of the Labor Code, a person acting on behalf of an employer who violates, or causes to be violated, sections 203, 226, 226.7, 1193.6, 1194, or 2802 of the Labor Code may be held liable as the employer for the violation. Personal involvement in causing the violation suffices; managing-agent status under § 558.1(b) is a distinct inquiry appropriate for summary judgment. (*Usher v. White* (2021) 64 Cal.App.5th 883.)

As to the 10th cause of action, Paragraph 26 alleges Garcia forced Plaintiff to complete OSHA training off the clock without pay and Paragraph 43 alleges Garcia and Bauer held final wages and the Christmas bonus hostage. That personal conduct causes § 201–203 violations. Ryker, however, is alleged only to have received complaints and communicated decisions (Comp., ¶ 43). This is not sufficient as to Ryker. **As such, the Court overrules the demurrer as to Garcia, and sustains with leave to amend as to Ryker.**

As to the 11th cause of action, section 204 is not enumerated in Lab. Code § 558.1. This is a substantive statutory limit not curable by amendment as to the Lab. Code. § 558.1 vehicle. As such, **the Court sustains the demurrer without further leave to amend.**

As to the 11th cause of action, section 226 is enumerated in Lab. Code, § 558.1. Garcia's role in causing off-the-clock unpaid work (§ 26) necessarily implicates inaccurate wage statements. However, there are no facts alleged that Ryker prepared, controlled, or caused wage-statement content. **As such, the Court overrules the demurrer as to Garcia, and sustains with leave to amend as to Ryker.**

Finally, as to the 12th cause of action, section 226.7 is enumerated. Paragraph 45 specifically names both Garcia and Ryker as consistently depriving Plaintiff of uninterrupted rest periods. **As such, the Court overrules the demurrer.**

III. Motion to Strike

Pursuant to C.C.P., § 436(a), the court may "strike out any irrelevant, false, or improper matter inserted in any pleading." When ruling on a motion to strike, the allegations of the pleading are assumed to be true and read in their context. (*Clauson v. Sup. Ct.* (1998) 67 Cal.App.4th 1253, 1255.) A pleading is to be liberally construed. (*CLD Construction v. City of Ramon* (2004) 120 Cal.App.4th 1141, 1146.)

Managing-Agent Allegations

Paragraphs 131, 143, 149 as to Garcia — **DENIED**. Personal-involvement facts suffice at the pleading stage. (§§ 26, 43, 45) Whether Garcia possessed corporate-policy authority under Lab. Code § 558.1(b) is for summary judgment. (*Usher v. White* (2021) 64 Cal.App.5th 883.)

Paragraph 149 as to Ryker — **DENIED**. Paragraph 45 alleges Ryker personally deprived Plaintiff of rest breaks.

Paragraphs 131, 143 as to Ryker — **GRANTED** W/21 DAYS LEAVE. HR-title-based inference is foreclosed. There are no facts alleged that Ryker controlled payroll or wage-statement content.

Paragraph 138 — **MOOT** (demurrer to Eleventh Cause sustained without leave).

Punitive-Damages Allegations

Civil Code § 3294 requires ultimate facts of malice, oppression, or fraud; corporate liability under subd. (b) requires an officer, director, or managing agent's authorization, advance knowledge, or ratification.

As to Garcia and Bauer — **DENIED**. Paragraph 24 alleges Garcia refused to allow Plaintiff to feed a hungry client, then falsely accused Plaintiff of leaving clients unattended, knowing no proof existed (Comp., 24); alleges knowingly false neglect accusations (Comp. ¶ 25); Bauer (COO) and Garcia held final wages hostage to extract a rights waiver (Comp. ¶ 43); knowledge that termination reasons were false (Comp. ¶ 44). Falsely

accusing a caregiver of client neglect at a facility serving adults with special needs, coupled with wage-hostage conduct, pleads despicable conduct with knowledge of falsity.

As to Ryker — **GRANTED W/21 DAYS LEAVE**. The Complaint alleges Ryker threatened to report Plaintiff to licensing (Comp. ¶ 39) but does not allege facts showing her knowledge of falsity or intent to harm.

As to Yodites (BOT) — **DENIED** to the extent based on Bauer's officer conduct (¶ 43 identifies Bauer as COO); **GRANTED W/21 DAYS LEAVE** as to conclusory authorization/ratification language that merely tracks the statute without identifying the ratifying officer.

Prayer No. 7

§ 558.1 — **DENIED**. Read in context, the prayer identifies § 558.1 as the liability hook for individual defendants on the enumerated wage-and-hour claims, not as an independent damages provision.

§ 1194.2 — **DENIED**. Paragraph 26's allegation of uncompensated off-the-clock work states, at notice-pleading level, a minimum-wage predicate for § 1194.2 liquidated damages.

§ 1194.5 — **GRANTED W/21 DAYS LEAVE** for relocation to Prayer No. 8 or removal. Section 1194.5 authorizes injunctive relief, not compensation or penalties.

Prayer No. 8

Declaratory/Injunctive Relief — **DENIED**. Code Civ. Proc. § 425.10 does not require a prayer to specify the precise declaration or conduct to be enjoined. Whether a terminated FEHA plaintiff can obtain such relief on this record is a merits question, not a pleading defect.

Prayer No. 11

Expert Witness Fees — **DENIED**. C.C.P., § 998(d) preserves the discretionary award of expert fees against any defendant against whom a valid 998 offer is made and beaten, regardless of the underlying cause of action. Entitlement is properly addressed on a post-judgment fees motion, not by pretrial strike.

Summary:

Sustain the demurrer, in part, as to the 11th cause of action without leave to amend. Sustain the demurrer as to 10th and 12th causes of action Defendant Ryker only with 21 days leave to amend. Otherwise overrule.

Grant the motion to strike as to Defendant Ryker only at Paragraphs 131, 143, punitive damages, and Defendant BOT as to ratification with 21 days leave to amend only. Grant as to prayer No. 7 as to § 1194.5 only with 21 days leave to amend only. The motion is moot as to Paragraph 138. The motion is otherwise denied.